MUTUAL NON-DISCLOSURE AGREEMENT

Sassy Consulting LLC

Proprietary Software & Technology

798 Water Street, Prairie du Sac, WI 53578

https://sassyconsultingllc.com

Effective Date: 14FEB2026

Agreement No.: See document hash in D1

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THIS MUTUAL NON-DISCLOSURE AGREEMENT ("Agreement") is entered into as of the date last signed below (the "Effective Date") by and between:

Party A: Sassy Consulting LLC, a Wisconsin limited liability company, located at 798 Water Street, Prairie du Sac, WI 53578.

Party B (complete all fields; initials confirm accuracy):

Full Legal Name: _____

Organization: _____

Address: _____

Jurisdiction: _____

Email: _____

Initials: _____

By initialing above, Party B certifies that the information provided is accurate and acknowledges receipt of this Agreement. Sassy Consulting LLC and Party B are each referred to individually as a "Party" and collectively as the "Parties." When a Party discloses Confidential Information, it is the "Disclosing Party"; when a Party receives Confidential Information, it is the "Receiving Party."

WHEREAS, Sassy Consulting LLC has developed and continues to develop proprietary software products, technologies, and related intellectual property, including but not limited to: **Sassy Browser**, **SassyTalkie**, **WinForensics**, **Website Builder**, and **Foodie Finder**, along with associated websites, mobile applications, APIs, backend systems, and supporting infrastructure (collectively, the "Products"); and

WHEREAS, the Parties desire to exchange certain Confidential Information for the purposes of consultation, quality review, partnership, and/or legal due diligence (the "Purpose"); and

WHEREAS, each Party agrees to protect Confidential Information received from the other Party in accordance with the terms herein;

NOW, THEREFORE, in consideration of the mutual promises contained herein, the Parties agree as follows:

1 Confidential Information

1.1 Scope

"Confidential Information" means any public or non-public, proprietary, or trade secret information disclosed by either Party (as Disclosing Party) to the other Party (as Receiving Party), in any form, whether or not marked as confidential. With respect to Sassy Consulting LLC, Confidential Information includes information relating to the Products or the business of Sassy Consulting LLC, including but not limited to:

(a) **Technical:** Source code, object code, algorithms, data structures, system architecture, rendering engines, browser internals, sandboxing mechanisms, cryptographic methods, networking protocols, memory management, build systems, toolchains, compiler configurations, test suites, performance benchmarks, and documentation;

(b) **Software Design:** UI/UX designs, wireframes, prototypes, specifications, feature roadmaps, extension APIs, plugin interfaces, and developer tools;

(c) **Security:** Vulnerability assessments, penetration test results, threat models, security audits, incident response procedures, encryption keys, certificate management, ad-blocking methods, anti-tracking implementations, and privacy techniques;

(d) **AI and Machine Learning:** Training data, model architectures, weights, parameters, fine-tuning datasets, prompt libraries, embeddings, inference pipelines, and AI-generated outputs derived from Confidential Information;

(e) **Business:** Business plans, marketing strategies, pricing, customer lists, vendor agreements, financial data, licensing terms, partnerships, and competitive analyses;

(f) **R&D:** Experimental features, unreleased technologies, research findings, patent-pending inventions, technical notes, and development logs;

(g) **Infrastructure:** Server configurations, deployment pipelines, cloud architecture, CI/CD systems, monitoring, and operational procedures;

(h) **Third-Party:** Confidential information received from third parties under obligation of confidentiality.

1.2 Data Classification

Confidential Information is classified into two tiers:

(a) **Highly Sensitive:** Source code, cryptographic keys, security vulnerability data, encryption implementations, authentication systems, unpublished patent materials, and

any information expressly designated as "Highly Sensitive" by the Disclosing Party. Highly Sensitive information may not be stored on unauthorized devices, transmitted over unencrypted channels, or accessed from shared or public networks under any circumstances. All devices used to store or access Highly Sensitive information must be approved in writing by the Disclosing Party.

(b) **Confidential:** All other Confidential Information not classified as Highly Sensitive. Standard protections as described in this Agreement apply.

The Disclosing Party may reclassify information at any time by written notice to the Receiving Party.

1.3 Exclusions

Confidential Information does not include information the Receiving Party can demonstrate by clear and convincing evidence, with the burden of proof resting entirely on the Receiving Party:

(a) Was publicly available at the time of disclosure or becomes publicly available thereafter, provided that such public availability did not result, directly or indirectly, from any act, omission, or breach by the Receiving Party or any person to whom the Receiving Party disclosed such information;

(b) Was already in the Receiving Party's possession prior to disclosure, as established by contemporaneous written records created before the date of disclosure, and was not itself obtained directly or indirectly from the Disclosing Party or any party acting on the Disclosing Party's behalf;

(c) Was independently developed by the Receiving Party without any use of, reference to, or reliance upon Confidential Information, as established by contemporaneous written records including dated development logs, version control history, or equivalent documentation;

(d) Was received from an identified third party who (i) is identified by name in writing at the time the Receiving Party invokes this exclusion, (ii) had a lawful right to disclose such information, (iii) was not bound by any confidentiality obligation to the Disclosing Party with respect to such information, and (iv) did not obtain such information directly or indirectly from the Disclosing Party;

(e) Was disclosed with the prior express written consent of an authorized officer of the Disclosing Party specifically referencing this Agreement.

Combination Clause. Information that individually falls within one or more of the above exclusions shall nonetheless be treated as Confidential Information to the extent that the specific combination, compilation, selection, arrangement, or analysis of such information has not independently entered the public domain or been independently known or developed as described above.

No Implied Exclusion. The Receiving Party shall not claim any exclusion based on general knowledge of an industry, field, or technology. Familiarity with a general concept does not exclude the Disclosing Party's specific implementation, methodology, architecture, or application of that concept.

2 Obligations of the Receiving Party

2.1 Duty of Confidentiality

Each Receiving Party shall:

(a) Hold all Confidential Information in strictest confidence;

(b) Not disclose Confidential Information to any third party without prior written authorization;

(c) Use Confidential Information solely for the Purpose;

(d) Apply at least the same degree of care used to protect its own confidential information, and in no event less than reasonable care;

(e) Limit access to employees, agents, or contractors with a need to know who are bound by written confidentiality obligations at least as restrictive as this Agreement.

2.2 Prohibited Actions

The Receiving Party shall not, directly or indirectly:

(a) Reverse engineer, decompile, disassemble, or attempt to derive source code, structure, or implementation of any disclosed software or technology;

(b) Copy or reproduce Confidential Information except as strictly necessary for the Purpose with prior written consent;

(c) Create derivative works based on Confidential Information;

(d) File any IP registration based on or derived from Confidential Information;

(e) Remove or alter proprietary notices on materials containing Confidential Information;

(f) Transfer or sublicense any rights in Confidential Information;

(g) Use Confidential Information to compete with or assist any third party in competing with the Disclosing Party;

(h) Input, upload, or provide Confidential Information to any public or third-party AI system, LLM, or generative AI tool unless operating under enterprise-grade data isolation with contractual no-training guarantees;

(i) Use Confidential Information to train, fine-tune, validate, or improve any AI model, neural network, or machine learning system;

(j) Permit Confidential Information to become embedded in the parameters, weights, or learned representations of any AI system;

(k) Facilitate, permit, or fail to prevent any third party—whether human, automated system, or AI agent—from obtaining, accessing, extracting, intercepting, or exfiltrating Confidential Information by any means, including but not limited to: network sniffing, packet capture, man-in-the-middle attacks, vulnerability exploitation, penetration testing tools (e.g., Kali Linux, Metasploit, or equivalent), social engineering, phishing, credential harvesting, side-channel attacks, memory forensics, or any other technical or non-technical method;

(l) Create, maintain, or permit the creation of unauthorized clones, mirrors, replicas, snapshots, or derivative copies of any system, database, repository, or environment containing Confidential Information, whether in whole or in part;

(m) Deliberately weaken, bypass, disable, or circumvent any security control, access restriction, encryption, authentication mechanism, or monitoring system protecting Confidential Information, or assist any third party in doing so;

(n) Use any method, tool, or technique—whether characterized as security testing, research, audit, or otherwise—to extract, reveal, reconstruct, or deduce Confidential Information beyond what has been expressly authorized in writing by the Disclosing Party, including extraction through inference, aggregation of partial disclosures, or analysis of metadata, logs, or system behavior.

Constructive Knowledge. For purposes of this section, the Receiving Party shall be deemed to have knowledge of any extraction, access, or disclosure that a reasonably diligent party employing industry-standard security monitoring would have detected. Failure to

implement adequate monitoring does not excuse a breach under this section.

2.3 Security Measures

The Receiving Party shall maintain, at minimum:

(a) Encryption of Confidential Information at rest (AES-256 or equivalent) and in transit (TLS 1.2+);

(b) Access controls with unique credentials and multi-factor authentication;

(c) Current security patches and endpoint protection on all systems storing Confidential Information;

(d) Audit logging of all access to Confidential Information;

(e) Notification to the Disclosing Party within 48 hours of any actual or suspected security breach.

2.4 Audit Rights

Either Party (as Disclosing Party) may, upon thirty (30) days' written notice and no more than once per calendar year (or immediately upon reasonable suspicion of breach), conduct or commission an independent audit of the other Party's (as Receiving Party) compliance with this Agreement. Audits shall be conducted during normal business hours and shall not unreasonably interfere with the audited Party's operations. The audited Party shall cooperate fully, provide reasonable access to relevant systems, records, and personnel, and bear the cost of remediation for any deficiencies identified. The auditing Party shall bear audit costs unless the audit reveals a material breach, in which case the audited Party shall reimburse all reasonable audit costs.

3 AI and Machine Learning Restrictions

3.1 General Prohibition

The Receiving Party acknowledges that AI technologies pose unique risks including unintended data retention in model parameters, inference leakage, and generation of outputs reflecting Confidential Information. The Receiving Party shall not process Confidential Information using any AI system except as permitted below.

3.2 Permitted AI Use

Processing of Confidential Information via AI is permitted only if:

(a) The tool operates in a private or enterprise deployment with contractual no-training guarantees from the vendor;

(b) Prompts, inputs, and outputs are not retained by the tool or its provider beyond the duration of the active session;

(c) The tool is inaccessible to unauthorized persons and requires authentication;

(d) The Disclosing Party has given prior written approval specifying the permitted tool and its authorized scope of use;

(e) The Receiving Party maintains a written log of all AI processing of Confidential Information, including dates, tools used, and categories of information processed.

3.3 Training Prohibition

Under no circumstances shall Confidential Information be used to train, fine-tune, reinforce, distill, or adapt any AI model, whether proprietary, third-party, or open-source.

3.4 Data Residue

If Confidential Information is processed by any AI system in violation of this Agreement, the Receiving Party shall immediately notify the Disclosing Party, take all commercially reasonable steps to purge or destroy any contaminated model, provide written certification of remediation, and bear all associated costs.

3.5 Third-Party AI Vendors

The Receiving Party shall ensure all third-party vendors with AI-enabled products are bound by equivalent restrictions, obtain written no-training confirmations, and remain fully liable for any vendor breach.

3.6 Approved AI Tools and Custom Context

Where AI tools are necessary to fulfill the Purpose and have been approved in writing pursuant to Section 3.2, the Receiving Party may use such tools provided the strict no-training requirement of Section 3.3 is followed at all times. When using any AI tool with custom context, system prompts, or persistent instructions that may process Confidential Information, the Receiving Party shall include the following statement at the beginning of each AI session or system prompt:

> *"No Training: The content of this session contains Confidential Information subject to a Non-Disclosure Agreement with Sassy Consulting LLC. This information must not be used for model training, fine-tuning, reinforcement learning, distillation, or any form of model improvement. Session data must not be retained beyond the active session."*

The inclusion of this statement does not relieve the Receiving Party of any obligation under this Agreement and is not a substitute for obtaining the contractual no-training guarantees required by Section 3.2(a). The Receiving Party remains fully responsible for verifying that the AI tool's provider honors no-training commitments regardless of any session-level instructions.

4 Term and Termination

4.1 Term

This Agreement remains in effect for five (5) years from the Effective Date unless earlier terminated.

4.2 Survival

Confidentiality obligations survive expiration or termination for five (5) years. Trade secret obligations continue indefinitely for as long as the information qualifies as a trade secret. The obligations set forth in Section 3 (Artificial Intelligence and Machine Learning Restrictions) shall survive indefinitely, as AI model contamination may persist beyond the term of this Agreement and the risk of unauthorized retention or reproduction of Confidential Information within AI systems cannot be bounded by a fixed time period.

4.3 Termination

Either Party may terminate with thirty (30) days' written notice.

4.4 Return or Destruction

Upon expiration, termination, or written request, the Receiving Party shall promptly:

(a) Return all originals and copies of Confidential Information;

(b) Permanently destroy all physical materials containing Confidential Information by cross-cut shredding (DIN 66399 Security Level P-4 or higher), incineration, or pulping, as appropriate to the medium;

(c) Permanently destroy all electronic copies, including backups, cloud storage, and AI system caches, using methods that render recovery infeasible, including: secure erasure

compliant with NIST SP 800-88 ("Guidelines for Media Sanitization"), cryptographic erasure where hardware encryption is employed, or physical destruction of storage media by degaussing, shredding, or disintegration;

(d) Purge, retrain, or destroy any AI model exposed to Confidential Information;

(e) Provide a written Certificate of Destruction within fourteen (14) days, signed by an authorized representative, specifying the materials destroyed, the method of destruction used, the date of destruction, and the identity of the individual who performed or supervised the destruction.

One archival copy may be retained solely for legal compliance, subject to ongoing confidentiality obligations.

5 Intellectual Property

All Confidential Information and IP rights therein remain the exclusive property of the Disclosing Party. Nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license, right, title, or interest in or to any Confidential Information, intellectual property, patent, copyright, trademark, trade secret, or other proprietary right of the Disclosing Party. No right to use Confidential Information is granted except the limited right to review such information solely for the Purpose, and any such limited right terminates immediately upon expiration or termination of this Agreement. This Agreement does not obligate either Party to disclose any information or enter any further relationship.

5.1 Residual Knowledge

Nothing in this Agreement shall prevent the Receiving Party from using general knowledge, skills, and experience retained in the unaided memory of its personnel, provided that such use does not involve the disclosure or reproduction of Confidential Information and does not infringe the Disclosing Party's intellectual property rights. This exception does not apply to Highly Sensitive information or any information the Receiving Party knows or should know constitutes a trade secret.

6 Non-Solicitation and Non-Circumvention

6.1 Non-Solicitation

During the term of this Agreement and for a period of two (2) years following its expiration or termination, neither Party shall, directly or indirectly, solicit, recruit, hire, or attempt to hire any employee, contractor, or consultant of the other Party who was involved in or had access to the Confidential Information, without the other Party's prior written consent. This

restriction further applies to any customers or vendors with whom the Receiving Party had contact through or by reason of the Confidential Information disclosed under this Agreement.

Geographic Scope. This non-solicitation obligation applies within the United States and any foreign jurisdiction in which the Disclosing Party conducts business or has active customer or vendor relationships as of the date of the alleged breach.

Need-to-Know Limitation. The restrictions of this section apply only to those individuals and entities whose identity, relationship with the Disclosing Party, or business activities were known to the Receiving Party as a direct result of access to Confidential Information. The Receiving Party bears the burden of demonstrating that any solicited party was known to the Receiving Party independently of this Agreement through contemporaneous written records predating the disclosure.

6.2 Non-Circumvention

Neither Party shall, directly or indirectly, contact, deal with, or otherwise circumvent the other Party to conduct business with any client, customer, partner, vendor, or contact of the other Party that was introduced to or made known to the Receiving Party through the disclosure of Confidential Information. This obligation shall remain in effect during the term of this Agreement and for two (2) years thereafter.

7 Compelled Disclosure

If compelled by law or legal process to disclose Confidential Information, the Receiving Party shall: (a) provide prompt written notice to the Disclosing Party (to the extent permitted); (b) cooperate in seeking a protective order at the Disclosing Party's expense; (c) disclose only the minimum required; and (d) seek confidential treatment of any disclosed information.

8 Dispute Resolution

8.1 Mediation

Before initiating litigation, the Parties shall attempt to resolve any dispute through good-faith mediation administered by a mutually agreed mediator in the State of Wisconsin. Mediation shall be completed within sixty (60) days of written notice of the dispute, unless extended by mutual agreement. Each Party shall bear its own mediation costs; shared costs shall be split equally.

8.2 Injunctive Relief

Each Party acknowledges that any breach or threatened breach of this Agreement by the other Party would cause irreparable harm to the Disclosing Party for which monetary damages would be inadequate. Each Party agrees not to contest, and hereby waives any defense challenging, the existence of irreparable harm in any proceeding seeking injunctive or equitable relief brought by the other Party. Notwithstanding the mediation requirement, either Party may seek immediate injunctive or equitable relief without prior mediation to prevent ongoing or imminent disclosure of its Confidential Information, without proving actual damages or posting bond.

8.3 Indemnification

Each Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party and its officers, members, managers, employees, agents, and affiliates from all losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from any breach of this Agreement by the Receiving Party.

8.4 Liquidated Damages

Unauthorized disclosure by either Party shall result in liquidated damages of $5,000 per occurrence or actual damages plus reasonable attorneys' fees, whichever is greater, representing a reasonable estimate of damages and not a penalty. Payment of liquidated damages does not limit the Disclosing Party's right to pursue additional remedies.

8.5 Limitation of Liability

Except for breaches of confidentiality obligations, unauthorized disclosure, intellectual property infringement, or indemnification obligations under this Agreement, neither Party's aggregate liability shall exceed the greater of (a) $500,000 or (b) the total fees paid or payable between the Parties in the twelve (12) months preceding the claim. This limitation shall not apply to willful misconduct, gross negligence, or breaches of Sections 1 through 3 of this Agreement.

8.6 Prevailing Party Fee Shifting

In any legal proceeding arising out of or relating to this Agreement, the prevailing Party shall be entitled to recover its reasonable attorneys' fees, expert witness fees, court costs, and other litigation expenses from the non-prevailing Party, in addition to any other relief to which the prevailing Party may be entitled.

8.7 Choice-of-Law Enforcement

If any provision of this Agreement is found unenforceable under the laws of any jurisdiction other than Wisconsin, the Parties agree that such provision shall be interpreted and enforced to the maximum extent permitted under Wisconsin law. The Parties expressly consent to the application of Wisconsin law and waive any objection to venue or jurisdiction in Wisconsin courts, including any claim of inconvenient forum.

9 Representations and Warranties

Each Party represents that: (a) it has full authority to enter into this Agreement; (b) performance does not conflict with any other agreement; and (c) it will comply with all applicable laws.

10 General Provisions

10.1 Governing Law

This Agreement is governed by Wisconsin law without regard to conflict of laws principles. Litigation shall be brought exclusively in state or federal courts in Wisconsin. Without limiting the foregoing, claims arising from misappropriation of trade secrets may be brought under the Wisconsin Uniform Trade Secrets Act (Wis. Stat. §§ 134.90) and/or the federal Defend Trade Secrets Act of 2016 (18 U.S.C. §§ 1836 et seq.), and the remedies available under those statutes (including ex parte seizure under the DTSA) are in addition to, and not in limitation of, any remedies available under this Agreement.

10.2 Entire Agreement

This Agreement constitutes the entire agreement on this subject and supersedes all prior agreements, oral or written.

10.3 Amendment

Amendments require a written instrument signed by both Parties.

10.4 Waiver

No waiver is effective unless written and signed. Failure to enforce any provision does not waive future enforcement.

10.5 Severability

Invalid provisions shall be replaced by valid provisions achieving the original intent; remaining provisions continue in full force.

10.6 Assignment

Neither Party may assign this Agreement without prior written consent of the other Party, except that either Party may assign freely in connection with a merger, acquisition, or sale of all or substantially all of its assets, provided the assignee agrees in writing to be bound by the terms of this Agreement.

10.7 Notices

Written notices are deemed given when delivered personally, sent by certified mail (return receipt), or sent by overnight courier to the addresses herein.

10.8 Counterparts

This Agreement may be executed in counterparts. Electronic and PDF signatures are deemed originals.

10.9 No Agency

Nothing herein creates a partnership, joint venture, agency, or employment relationship.

10.10 Export Compliance

Each Party shall comply with all applicable export laws including the EAR and ITAR, and shall not transfer Confidential Information to prohibited destinations or persons.

SIGNATURE PAGE

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date last written below.

PARTY A:

Sassy Consulting LLC
798 Water Street, Prairie du Sac, WI 53578

14FEB2026

Authorized Signature Date

Printed Name: Shane Smith

Title: Owner and CEO - Sassy Consulting

PARTY B:

As identified in the Party B block on page 2.

Authorized Signature Date

Printed Name: .....

Title: .....

End of Mutual Non-Disclosure Agreement